

CHAPTER 22

An Act to amend the law in relation to the exposure and possession for the purpose of sale or hire, and to the importation, of flick knives and other dangerous weapons.
[18th May, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Prohibition of exposure and possession of dangerous weapons for sale or hire.
7 & 8 Eliz. 2. c. 37.

1. In subsection (1) of section one of the Restriction of Offensive Weapons Act, 1959 (which subsection makes it an offence to manufacture, sell or hire or offer for sale or hire, or lend or give a flick knife or other dangerous weapon) after the words " offers for sale or hire " there shall be inserted the words " or exposes or has in his possession for the purpose of sale or hire ".

Prohibition of importation of dangerous weapons into Northern Ireland.

2. Notwithstanding anything in subsection (3) of section two of the Restriction of Offensive Weapons Act, 1959 (which restricts the operation of that Act to Great Britain), subsection (2) of section one of that Act (which prohibits the importation of flick knives and other knives described in subsection (1) of the said section one) shall extend to Northern Ireland.

Short title, citation and commencement.

3.—(1) This Act may be cited as the Restriction of Offensive Weapons Act, 1961.

(2) This Act and the Restriction of Offensive Weapons Act, 1959, may be cited as the Restriction of Offensive Weapons Acts, 1959 and 1961.

(3) This Act shall come into operation at the expiration of the period of one month beginning with the day on which it is passed.

CHAPTER 23

An Act to make temporary provision as to the operation of the law upon the Union of South Africa becoming a Republic outside the Commonwealth.
[18th May, 1961]

WHEREAS on the thirty-first day of May, nineteen hundred and sixty-one, the Union of South Africa will become a Republic under the name of the Republic of South Africa, and cease to be a member of the Commonwealth:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) During the period of one year beginning with the thirty-first day of May, nineteen hundred and sixty-one, all existing law which operates as law of, or of any part of, the United Kingdom shall, unless provision to the contrary is made by an authority having power to alter that law, have the same operation in relation to the Republic of South Africa, and to persons and things in any way belonging thereto or connected therewith, as it would have had in relation to the Union of South Africa and persons and things belonging thereto and connected therewith if the Union had not become a Republic and had continued to be a member of the Commonwealth.

Operation of
existing law
in relation to
South Africa.

(2) In this section “existing law” means any Act of Parliament or other enactment or instrument whatsoever, and any rule of law, which is in force on the said thirty-first day of May, or, having been passed or made before that date, comes into force after that date.

(3) Subsection (1) of this section shall apply in relation to existing law which operates as law of, or of any part of, Southern Rhodesia or any colony, protectorate or United Kingdom trust territory as it applies in relation to existing law which operates as law of the United Kingdom, and references in this subsection to a colony, a protectorate and a United Kingdom trust territory shall be construed as if they were references contained in the British Nationality Act, 1948:

11 & 12 Geo. 6.
c. 56.

Provided that the said subsection (1)—

- (a) shall not apply in relation to any law passed by the Federal Legislature of Rhodesia and Nyasaland;
- (b) shall apply in relation to other law of, or of any part of, Southern Rhodesia so far only as concerns law which can be amended neither by a law passed by the Legislature thereof, nor by a law passed by the said Federal Legislature; and
- (c) shall apply in relation to other law of, or of any part of, Northern Rhodesia or Nyasaland so far only as concerns law which cannot be amended by a law passed by the said Federal Legislature.

2. This Act may be cited as the Republic of South Africa *Short title.*
(Temporary Provisions) Act, 1961.

